How a legal case moves

Como um caso legal avança, passo a passo

In the US, a person is innocent until proven guilty. Each step below is a different thing, and many stories stop at the first ones.

Presunção de inocência: ninguém é culpado até um tribunal provar.

1 Someone makes a claim

Alguém faz uma afirmação

IN THIS STORY

A news report, a company or an official says that something happened. At this point it is only an allegation: nobody has proved it.

> *The New York Times reported that US officials had been looking into Huang's relationship with Alice Huang. China and Megaspeed deny wrongdoing.*

allegation
alegação, afirmação ainda sem prova

alleged
suposto

deny
negar

wrongdoing
conduta errada ou ilegal

2 People look into it

Investigação

IN THIS STORY

A company can investigate itself, often with outside lawyers. Government agencies can investigate too. Investigators collect evidence: documents, messages, interviews.

> *Nvidia's board opened an independent investigation. It says it has no reason to believe that secrets were compromised.*

look into
investigar, examinar (informal)

investigate
investigar

suspect
suspeitar (verbo); suspeito (substantivo)

evidence
evidências, provas

3 Questions in public

Perguntas em público

REQUESTED FOR NOV 18

Congress can ask a person to come to a hearing and answer questions. If the person refuses, Congress can use a subpoena, which is a legal order. A hearing is not a trial: nobody is found guilty or innocent there.

> *Three Republican House chairmen asked Huang to appear on November 18.*

hearing
audiência

appear before
comparecer diante de

testify
depor, testemunhar

subpoena
intimação: ordem legal para depor ou entregar documentos

4 Prosecutors decide on charges

A acusação formal

NO CHARGES REPORTED

If prosecutors think they have enough evidence of a crime, they bring charges: a formal accusation. For serious federal crimes, a grand jury usually has to approve them first. If the evidence is not enough, no charges are filed and the case stops.

> *No charges have been reported against anyone in this story.*

charges
acusações formais na Justiça

file charges / bring charges
apresentar acusação formal (quem faz isso é o promotor)

press charges
informal: denunciar alguém e pedir que haja um processo. Nos EUA, quem decide é o promotor, não a vítima

be charged with
ser formalmente acusado de

indictment
acusação formal aprovada por um grande júri

grand jury
grupo de cidadãos que decide se há base para acusar

5 Plea or trial

Defesa e julgamento

The accused person is the defendant. He or she can plead guilty or not guilty. Many cases end with a plea deal. If not, there is a trial, with a judge or a jury.

defendant
réu

plead guilty / not guilty
declarar-se culpado / inocente

plea deal
acordo: o réu admite o crime em troca de uma pena menor

trial
julgamento

jury
júri, cidadãos que decidem o caso

6 Verdict and after

Veredicto e depois

The jury or the judge gives a verdict. A person who is convicted gets a sentence. The person can appeal to a higher court.

verdict
veredicto, decisão final do julgamento

convicted / acquitted
condenado / absolvido

sentence
pena, castigo decidido pelo juiz

appeal
recorrer; recurso a um tribunal superior

Another road: a civil lawsuit

Outro caminho: processo civil

A PROPOSED LAWSUIT

A lawsuit is a civil case. One side, the plaintiff, sues the other side and asks a court for money or for a change. Nobody goes to prison in a civil case. Many lawsuits end in a settlement, an agreement made before the court decides.

> *A proposed shareholder lawsuit says that investors were misled. It is a claim; it has not been decided.*

lawsuit
processo judicial (civil)

sue
processar

plaintiff
autor da ação

shareholder
acionista

settle / settlement
fazer acordo / acordo que encerra o processo

A simplified picture of the US system. Rules change by country and by case. This is language help, not legal advice. Online: the Legalese tab and the practice page of the Clipping.